

2. Page 24 ¶ 231; “Defendants acted with recklessness, oppression, fraud, or malice, including by consciously disregarding Plaintiff’s known hemophilia, mobility impairment, hygiene needs, and medical vulnerability.” The demurrer to the Third Cause of Action was sustained without leave to amend, therefore the request to strike this section is **GRANTED** without leave to amend.
3. Page 24 ¶ 233; “Plaintiff is entitled to compensatory damages according to proof and to enhanced remedies under Welfare and Institutions Code § 15657, including attorney’s fees and costs, as permitted by law.” Compensatory damages under W&I §15657 relate to the cause of action for dependent adult abuse. As stated above, the demurrer to this cause of action is sustained without leave to amend so the request to strike is **GRANTED** without leave to amend.
4. Page 24 ¶ 234; “Plaintiff is entitled to [punitive] damages against individual Defendants where permitted by law.” As stated above, the request for punitive damage is stricken. Therefore the request to strike this section is also **GRANTED** without leave to amend.
5. Page 34 ¶ 308(b); “For statutory damages and enhanced remedies as available by law, including:... b. against Defendants Prime Healthcare Services, Inc., Prime Healthcare Services- Shasta, LLC dba Shasta Regional Medical Center, Dr. Lloyd Peña, Dr. Garcia, Debra Miguel, R.N., Amacio Rogan, R.N., and Doe medical defendants on the claims arising under Civil Code sections 51, 52, 54.1, 56, et. seq. and Welfare and Institutions Code section 15657, to the extent permitted by law.”-

As explained above, the request to strike the references to Debra Miguel R.N., and Amacio Rogan R.N. is **GRANTED** with leave to amend.

The request to strike the reference to W&I Code § 15657 is also **GRANTED** with prejudice considering the dependent adult abuse claim is sustained without leave to amend.

The request to strike the references to Civ. Code § 51, 52, and 56 is **GRANTED** without leave to amend because Plaintiffs failed to sufficiently plead a valid cause of action against Defendants under these sections.

The remaining request to strike the reference to statutory damages and enhanced remedies under Civ. Code § 54.1 is **DENIED** because Plaintiffs have sufficiently pled a cause of action under this section.

6. Page 35 ¶ 309; “For punitive damages against individual Defendants where permitted by law.”- As stated above, the request for punitive damage is stricken with prejudice, therefore the request to strike this section is also **GRANTED** without leave to amend
7. Page 36 ¶ 314; “For attorney’s fees and costs where authorized by statute or other law.”- As explained above, the demurrer to the Sixth Cause of Action is overruled, therefore the request to strike is **DENIED**.

The motion is **GRANTED** in part and **DENIED** in part as outlined above. Defendants are to prepare an Order consistent with the Court’s ruling.

WARD, ET AL. VS. LEVINDOFSKE, ET AL.

CASE NUMBER: 25CV-0207586

Tentative Ruling on Motion to Strike: Defendants Sierra Pacific Industries, Inc. and Austin Michael Levindofske move to strike portions of the First Amended Complaint (FAC) relating to Plaintiff’s allegations in support of punitive and exemplary damages in paragraphs 2, 33-35, 36, as well as the associated prayer for relief.

Timeliness of Motion: Plaintiffs object that the motion is untimely. Defendants' deadline to file a responsive pleading to the FAC was June 15, 2026. On that date, Defendants filed a Declaration of Stephen Heath invoking the 30-day extension available under CCP 435.5(a)(2) when a party attempted, but failed, to meet and confer prior to filing a motion to strike. The Heath Declaration admits that no meet and confer occurred prior to filing. Plaintiff argues that this Motion should be denied or stricken on this basis. The Court declines to strike the Motion on the grounds of untimeliness in the interest of adjudicating the matter on the merits. Plaintiff will not be prejudiced by the Court's consideration of the Motion in this instance as detailed below.

Meet and Confer: Before filing a motion to strike, a party is required to meet and confer in person or on the telephone. CCP § 435.5(a). A motion to strike shall be supported by a declaration stating either that the parties met and conferred or that they were unable to meet and confer. CCP § 435.5(a)(3). The Declaration of Charles Shartle indicates that Defendant did not satisfy the meet and confer requirement prior to filing this motion. CCP 435.5(a)(4) provides that an insufficient meet and confer process shall not be grounds to grant or deny a motion to strike. Therefore, the Court elects to reach the merits as it will not prejudice Plaintiff in this instance, rather than continuing the hearing to require meet and confer.

Requests for Judicial Notice: Plaintiff requests the Court take judicial notice of the Complaint, the First Amended Complaint, and the Declaration of Stephen Heath to extend responsive pleading to the FAC. The requests are granted.

Merits: A motion to strike reaches only "irrelevant, false, or improper matter inserted in any pleading" or matter "not drawn or filed in conformity with the laws of this state." (Code Civ. Proc., § 436.) As with a demurrer, the court's review is limited to the face of the challenged pleading and matters subject to judicial notice; the allegations of the complaint are accepted as true, and extrinsic evidence offered by either side to create or resolve factual disputes is not properly considered on this motion. (Code Civ. Proc., § 437(a).

Plaintiff's First Amended Complaint alleges a single cause of action for Loss of Consortium. Plaintiff Jeff Ward brings the action as a result of injuries sustained by his wife Amarie Ward in an auto accident. Amarie Ward has resolved her claims against Defendants. Defendant moves to strike portions of Plaintiffs' FAC which alleges grounds for punitive and exemplary damages as well as the prayer for relief regarding same. Defendant argues that the allegations do not meet the legal threshold required and should therefore be stricken.

Civil Code 3294(b) provides an employer is liable for punitive damages when they have advance knowledge of the unfitness of the employee, and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded. *See also College Hospital Inc. v. Superior Court* (1994) 8 Cal. 4th 704.

Here, the FAC alleges both advance knowledge and later ratification of the wrongful conduct. The FAC alleges that SPI had advance knowledge of Levindofske's unfitness and employed him with conscious disregard of the rights and safety of others, and that through the exercise of reasonable care in hiring, screening, retention, training and supervisory processes, SPI knew or should have known that Levindofske was unfit or incompetent to safely operate a commercial tractor-trailer. (FAC ¶ 35)

The FAC alleges Levindofske was under the influence of drugs or alcohol at the time of the collision and was on the phone with his girlfriend while speeding through a construction zone at the time of the accident. (FAC ¶ 32) The FAC further alleges that SPI ratified this conduct by failing to follow their policies and procedures requiring drug and alcohol testing of any employee-driver involved in a work-related collision within 24 hours of the collision. (FAC ¶ 34) The FAC alleges that SPI's managing agents deliberately failed and refused to test Levindofske and demonstrates conscious disregard for the rights and safety of Plaintiffs and the general public. (FAC ¶ 34)

The Court finds that these allegations are sufficient to state a claim for punitive damages. Defendants' Motion to Strike is **DENIED**. The proposed order will be modified.

9:00 a.m. – Review Hearings

ALLEN VS. SHRANER, ET AL.

CASE NUMBER: 25CV-0206889

This matter is on calendar for a trial setting conference. The Court designates this as a Plan III case and intends to set the matter for trial no later than January 20, 2027. Defendants have posted jury fees. Plaintiff has a fee waiver on file, however the Order Granting Fee Waiver filed January 24, 2025, does not include jury fees and expenses (Item 4.a.(2)). Plaintiff is granted ten days leave to post jury fees or obtain a fee waiver. A failure to post jury fees or obtain a fee waiver in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

CAVALRY SPV I, LLC VS. DORSEY

CASE NUMBER: 24CVG-01994

This matter is on calendar for review regarding status of judgment/dismissal. Notice of Conditional Settlement was filed on March 4, 2026 indicating the matter would be dismissed no later than October 27, 2026. The matter is continued to **Monday, December 21, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The Court intends to dismiss the matter without prejudice on December 21, 2026 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the December 24, 2026 hearing. **No appearance is necessary on today's calendar.**

CITIBANK, N.A. VS. GARNICA, JR

CASE NUMBER: 24CVG-00889

This matter is on calendar for review regarding status of dismissal. Notice of Settlement was filed on August 18, 2025. Today's hearing is the third time that the matter has been on calendar awaiting a CCP § 664.6 dismissal. Plaintiff has filed a nearly identical declaration each time seeking an additional 90 days to obtain signatures with no detail regarding the delay. The Court will issue an Order to Show Cause Re: Sanctions to Plaintiff and counsel for failure to comply with the Court's Order dated May 26, 2026 which ordered the parties to take necessary steps to close the court file, failure to timely enter default per CRC 3.740(f), and failure to timely prosecute. The Order to Show Cause Re: Sanctions will be on calendar on **Monday, November 23, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to prepare the Order to Show Cause. **No appearance is necessary on today's calendar.**

DAY VS. DAY

CASE NUMBER: 23CV-0203736

This matter is on calendar for review regarding status of the case and potential appointment of a referee. On June 22, 2026, the Court set the fair market value of the property at issue. The clerk sent the notice required per CCP § 874.317 to all co-tenants on July 27, 2026. A cotenant has 45 days from the date of the notice to give notice to the Court that it elects to buy all the interest of the cotenants that requested partition by sale. CCP § 874.317(b). The 45 day period has not yet passed.

Should no notice be filed by September 16, 2026, the clerk is directed to issue notice per CCP § 874.317(d)(3) that the Court orders partition by sale pursuant to CCP § 874.318(b) with the finding that Plaintiff has requested partition by sale and no cotenant has requested partition in kind. In making this finding, the Court notes that the property at issue is a single-family residence and therefore not reasonably capable of partition in kind. Should the CCP § 874.317(d)(3) notice issue, Plaintiff is reminded that a referee will be needed to proceed with the sale.